

Amendment No. 1 to SB2242

Crowe
Signature of Sponsor

AMEND Senate Bill No. 2242*

House Bill No. 2557

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-10-204(39), is amended by adding the following as new subdivisions:

(F)

(i) Notwithstanding subdivision (39)(B), "practice of pharmacy" includes the issuing of a prescription or medical order of a drug or device if the issuance of the prescription or medical order:

(a) Is based upon the pharmacist's review of the patient's medical record containing a diagnosis made by a practitioner licensed to diagnose under chapter 3, 5, 6, 7, 9, or 19 of this title;

(b) Is minor and generally self-limiting;

(c) Is based on the results of a test performed by the pharmacist that is used to guide diagnosis or clinical decision-making and is waived under the Clinical Laboratory Improvement Amendments of 1988 (CLIA) (42 U.S.C. § 263a); or

(d) In the professional judgment of the pharmacist, is necessary to the patient's health and safety and failing to issue the prescription or medical order threatens the health or safety of the patient by not immediately dispensing the prescription. In such a case, the pharmacist shall only dispense the amount needed to the patient for such patient to be seen by a prescriber;

(ii) The standard of care for a pharmacist providing the services listed in this subdivision (39)(F) is the same standard of care as a physician issuing or providing the same service; and

(iii) Issuing a prescription or medical order pursuant to subdivision (39)(F)(i) is not considered the practice of medicine, as defined in § 63-6-204;

(G) Notwithstanding subdivision (39)(B), a pharmacist may order and perform a laboratory test that is waived under the Clinical Laboratory Improvement Amendments of 1988 (CLIA) (42 U.S.C. § 263a);

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 10, Part 2, is amended by adding the following as a new section:

63-10-226.

(a) A pharmacist issuing a prescription or medical order pursuant to § 63-10-204(39)(F) shall:

(1) Create and maintain, for not less than ten (10) years from the date of the last contact with a patient, a medical record for each encounter between the patient and pharmacist in which the pharmacist shall document, at a minimum:

(A) The prescription or medical order issued;

(B) The diagnosis, self-limiting condition, CLIA-waived test result, or emergency, as described in § 63-10-204(39)(F)(i)(d), upon which the issuance of the prescription or medical order was based; and

(C) Sufficient information about the patient encounter for a subsequent practitioner to be able to use the record to maintain patient continuity of care; and

(2) Only engage with the patient in a consultation area that offers the patient sufficient privacy for the encounter and ensures confidentiality of the communication.

(b) A patient to whom a pharmacist issues a prescription or medical order pursuant to § 63-10-204(39)(F) is not required to have the prescription or medical order fulfilled at the same pharmacy from which the pharmacist issued the prescription or medical order.

SECTION 3. The board of pharmacy is authorized to promulgate rules, including emergency rules, to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 4. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.